

**THIRD AMENDMENT TO THE DECLARATIONS OF COVENANTS,
CONDITIONS, RESTRICTIONS AND EASEMENTS FOR TROY
COMMERCIAL PARK CONDOMINIUM**

Document Number

Document Title

Recording Area

Name and Return Address

**Leo A. Beskar
Attorney at Law
219 N. Main Street
River Falls, WI 54022**

Parcel Identification Number (PIN)

**PINs: 040-1330-01-000, 040-1330-02-000, 040-1330-03-000, 040-1330-04-000, 040-1330-05-000,
040-1330-06-000, 040-1330-07-000, 040-1330-08-000, 040-1330-09-000, 040-1330-10-000,
040-1330-11-000, 040-1330-12-000, 040-1330-13-000, 040-1330-14-000, 040-1330-15-000,
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040-1330-42-000, 040-1330-43-000, 040-1330-44-000, 040-1330-45-000, 040-1330-46-000,
040-1330-47-000, 040-1330-48-000, 040-1330-49-000, 040-1330-50-000, 040-1330-51-000,
040-1330-52-000, 040-1330-53-000, 040-1330-54-000 and 040-1062-30-003**

THIS PAGE IS PART OF THIS LEGAL DOCUMENT – DO NOT REMOVE.

This information must be completed by submitter: document title, name & return address, and PIN (if required). Other information such as the granting clause, legal description, etc., may be placed on this first page of the document or may be placed on additional pages of the document.

WRDA Rev. 12/22/2010

**THIRD AMENDMENT TO THE DECLARATIONS
OF CONDOMINIUM, COVENANTS, CONDITIONS, RESTRICTIONS
AND EASEMENTS FOR THE CONDOMINIUM PLAT
OF TROY COMMERCIAL PARK CONDOMINIUM**

THIS SECOND AMENDMENT is made on this 22 day of August, 2024, by E.W. Homes, Inc., a Wisconsin corporation, by Mark Sylla, its president (hereinafter referred to as "Declarant").

RECITALS

1. On or about April 13, 2022, Declarant entered into a Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "Covenants"). These Covenants were recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin on May 3, 2022, as Document No. 1152480.
2. On or about June 22, 2022, Declarant entered into a First Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "First Amendment"). This First Amendment was recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin on August 4, 2022, as Document No. 1157010.
3. On or about October 30, 2023, Declarant entered into a Second Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium (hereinafter referred to as "Second Amendment"). This Second Amendment was recorded in the Office of the Register of Deeds for St. Croix County, Wisconsin, on November 6, 2023, as Document No. 1173006 for real estate *now* legally described on Exhibit A, which is attached hereto and incorporated herein.
4. The Declarant desires to amend the above described Declaration, First Amendment and Second Amendment to expand the condominium by adding 170 units with the land described in Exhibit D and the property is hereby submitted to the condominium form of ownership as provided in Chapter 703, Wisconsin statutes.

NOW, THEREFORE, the Declarant hereby amends the Covenants as follows:

A. Page 3, second paragraph of Paragraph B, of the Covenants and Paragraph B of the Second Declaration are hereby deleted and the following shall be inserted in its place:

The maximum number of Units in the Condominium shall be 223. The total number of Units in the condominium shall now be 223 Units.

B. Article III, Section 1, of the Covenants and Paragraph C of the Second Declaration

shall be deleted and the following paragraph shall be inserted in its place.

Section 1. Percentage Interest. The undivided percentage interest in the Common Elements appurtenant to each Unit shall be a percentage equal to one divided by the total number of Units. If the number of Units changes due to expansion of the Condominium, the percentage interest shall be recalculated. Each Unit's percentage shall be .429184%.

C. Article VII, Section 1 of the Covenants and Paragraph D, Section 1 of the Second Declaration shall be deleted and the following shall be inserted in its place:

Section 1. Percentage Interest. The undivided percentage interest in the Limited Common Elements appurtenant to each Unit shall be a percentage equal to one divided by the total number of Units. If the number of Units changes due to expansion of the Condominium, the percentage interest shall be recalculated. Initially, each Unit's percentage shall be .429184%.

D. Exhibit B of the Covenants and the Second Amendment, the legal description for the expansion area, shall be deleted in its entirety.

E. The legal description contained on Exhibit C of the Covenants and the Second Amendment shall be deleted and shall be replaced by Exhibit C, which is attached hereto and incorporated herein.

F. All other terms and conditions of the original Covenants, First Amendment and Second Amendment which are not affected by the Third Amendment shall remain in full force and effect.

Dated this 22 day of August, 2024.

E.W. Homes, Inc.

By: [Signature]
Mark Sylla, its president

STATE OF WISCONSIN)
) ss.
COUNTY OF PIERCE)

Personally came before me this 22 day of August, 2024, the above named E.W. Homes, Inc., a Wisconsin corporation, by Mark Sylla, its president, to me known to be the person who executed the foregoing instrument and acknowledged the same.

[Signature]
Notary Public Kathleen M. Bennett
State of Wisconsin
My commission expires 4/23/2026

THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

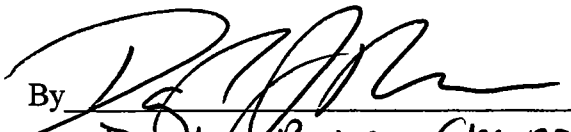
APPROVAL

The Town of Troy has reviewed the above Third Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium and has approved the same.

Dated this 22 day of AUGUST, 2023.

TROY OF TROY

By


Douglas Rowen, Chairman

STATE OF WISCONSIN)
) ss.
COUNTY OF Pierce)

Personally came before me this 22nd day of August, 2024, the above named Town of Troy, by Douglas Rowen, its Chairman, to me known to be the person who executed the foregoing instrument and acknowledged the same.


Notary Public Kathleen M. Bennett
State of Wisconsin
My commission expires 6/23/2024

THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

CONSENT OF MORTGAGEE

Alliance Bank, the owner and holder of a Mortgage upon the real property described in the foregoing instrument herewith joins and consents therein.

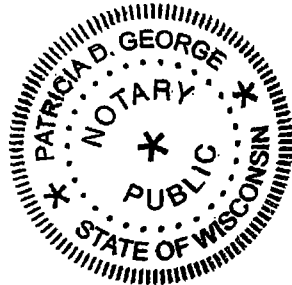
Dated this 22nd day of August, 2024.

Alliance Bank

By: Gordon Boos

STATE OF WISCONSIN)
) ss.
COUNTY OF Buffalo)

Personally came before me this 22nd day of August, 2024, the above named Alliance Bank, by Gordon Boos, its Sr. Loan Officer, to me known to be the person who executed the foregoing instrument and acknowledged the same.



Patricia D. George
Notary Public
State of Wisconsin
My commission expires 9-15-24

THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

UNIT OWNER APPROVAL

The undersigned, E.W. Homes, Inc., owning 43.4% or more of the Units in Troy Commercial Park Condominium, hereby consents and approves the Third Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium.

Dated this 22nd day of August, 2024.

E.W. Homes, Inc.

By: Mark Sylla

Mark Sylla, its president

STATE OF WISCONSIN)
) ss.
COUNTY OF PIERCE)

Personally came before me this 22nd day of August, 2024, the above named E.W. Homes, Inc., a Wisconsin corporation, by Mark Sylla, its president, to me known to be the person who executed the foregoing instrument and acknowledged the same.

Kathleen H. Bennett
Notary Public

State of Wisconsin

My commission expires 6/23/2026

THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

UNIT OWNER APPROVAL

The undersigned, State Line Warehousing, LLC, a Wisconsin limited liability company, owning 7.6% or more of the Units in Troy Commercial Park Condominium, hereby consents and approves the Third Amendment to the Declaration of Condominium, Covenants, Conditions, Restrictions and Easements for the Condominium Plat of Troy Commercial Park Condominium.

Dated this 22nd day of August, 2024.

State Line Warehousing, LLC

By: [Signature]
Mark Sylla, its member

STATE OF WISCONSIN)
) ss.
COUNTY OF PIERCE)

Personally came before me this 22nd day of August, 2024, the above named State Line Warehousing, LLC, a Wisconsin limited liability company, by Mark Sylla, its member, to me known to be the person who executed the foregoing instrument and acknowledged the same.

[Signature]
Notary Public Kathleen M. Berner
State of Wisconsin
My commission expires 4/23/2026

THIS INSTRUMENT WAS DRAFTED BY:

Leo A. Beskar
Rodli, Beskar, Neuhaus, Murray & Pletcher, S.C.
219 N. Main Street
River Falls, WI 54022

EXHIBIT A

Units 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 201, 202, 203, 204, 205, 206, 207, 208, 301, 302, 303, 304, 305, 306, 307, 308, 401, 402, 403, 404, 405, 406, 407, 408, 409 and 410 of the Plat of Troy Commercial Park Condominium, St. Croix County, Wisconsin being part of Lot One (1) of Certified Survey Map No. 32-7113 in Volume 32, Page 7113, as Document Number 1152469 filed in St. Croix County Register of Deeds Office on May 3, 2022, being part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin.

EXHIBIT C

Units 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829 and 830 of the Plat of Troy Commercial Park Condominium, St. Croix County, Wisconsin being part of Lot One (1) of Certified Survey Map No. 32-7113 in Volume 32, Page 7113, as Document Number 1152469 filed in St. Croix County Register of Deeds Office on May 3, 2022, being part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin.

AND

The attached Troy Commercial Park Condominium Second Addendum.

EXHIBIT D

Part of the Southwest Quarter of the Southeast Quarter and part of the Northwest Quarter of the Southeast Quarter of Section 15, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin, being part of Lot 1 of a Certified Survey Map recorded in Volume 32, page 7113 as Document Number 1152469 in the Register of Deeds for said county and described as follows:

Commencing at the Southeast corner of said Lot 1; thence S57°15'59"W a distance of 312.85 feet to the point of beginning; thence S57°15'59"W a distance of 573.85 feet to the Southwest corner of said Lot 1; thence N52°39'38"W a distance of 555.12 feet; thence along the arc of a curve, concave easterly, a distance of 339.83 feet, said curve having a radius of 960.00 feet and a chord which bears N10°35'55"W a distance of 338.06 feet; thence N00°27'27"W a distance of 49.64 feet; thence N89°32'33"E a distance of 26.37 feet; thence along the arc of a curve, concave northerly, a distance of 131.75 feet, said curve having a radius of 233.00 feet and a chord which bears N73°20'37"E a distance of 130.00 feet; thence N57°08'41"E a distance of 220.22 feet; thence S32°51'14"E a distance of 281.00 feet; thence N57°08'41"E a distance of 240.00 feet; thence S32°51'14"E a distance of 546.89 feet to the point of beginning.

TROY COMMERCIAL PARK CONDOMINIUM SECOND ADDENDUM

AN EXPANDABLE CONDOMINIUM
TOWN OF TROY, ST. CROIX COUNTY

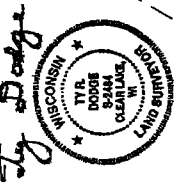
Second Addendum declared area property description:
Part of the Southwest Quarter of the Southeast Quarter and part of the North Range 19 West, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin, being part of Lot 1 of a Certified Survey Map recorded in Volume 32 Page 7113 as document number 1152469 in the Register of Deeds Office for said county and described as follows:

Beginning at the southeast corner of said Lot 1;
thence S 57° 15' 59" W a distance of 312.85 feet;
thence S 57° 15' 59" W a distance of 573.85 feet to the southwest corner of said Lot 1;
thence N 52° 39' 38" W a distance of 555.12 feet;
thence along the arc of a curve, concave easterly, a distance of 339.83 feet, said curve having a radius of 960.00 feet and a chord which bears N 10° 35' 55" W a distance of 338.05 feet;
thence N 00° 27' 27" W a distance of 49.64 feet;
thence N 00° 32' 33" E a distance of 26.37 feet;
thence along the arc of a curve, concave northerly, a distance of 131.75 feet, said curve having a radius of 233.00 feet and a chord which bears N 73° 20' 37" E a distance of 130.00 feet;
thence N 57° 08' 41" E a distance of 220.22 feet;
thence S 52° 31' 14" E a distance of 28.00 feet;
thence N 57° 08' 41" E a distance of 240.00 feet;
thence S 52° 31' 14" E a distance of 546.89 feet to the point of beginning.
Containing 11.51 Acres.

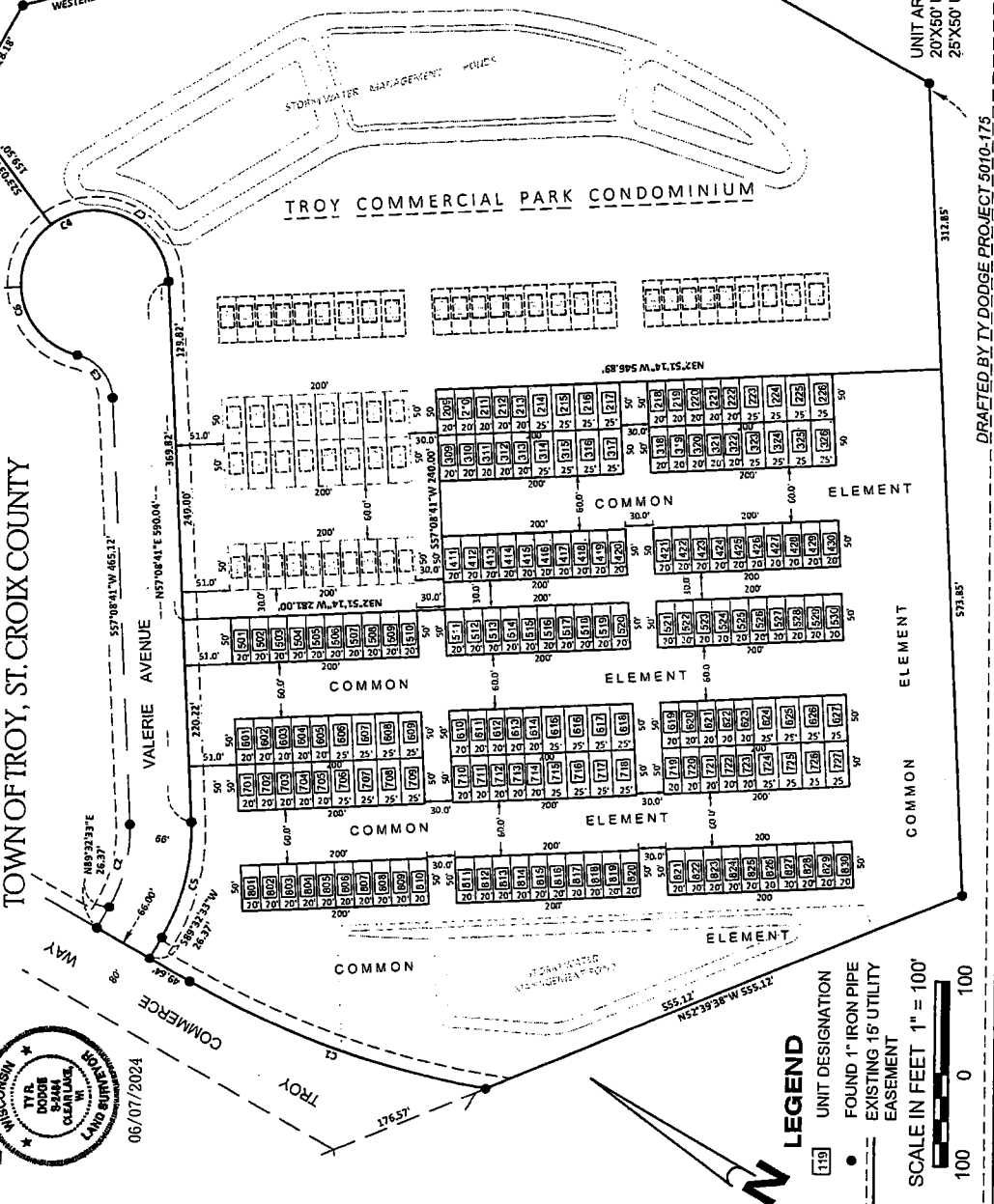
Troy Commercial Park Condominium online area property description:
Part of the Southwest Quarter of the Southeast Quarter and part of the North Range 19 West, Township 28 North, Range 19 West, Town of Troy, St. Croix County, Wisconsin, being part of Lot 1 of a Certified Survey Map recorded in Volume 32 Page 7113 as document number 1152469 in the Register of Deeds Office for said county EXCEPT that part described as follows:

Beginning at the northwest corner of said Lot 1;
thence N 89° 12' 44" E a distance of 150.54 feet;
thence S 48° 57' 51" E a distance of 430.09 feet;
thence N 89° 29' 16" E a distance of 485.36 feet;
thence S 23° 03' 34" W a distance of 159.50 feet;
thence along the arc of a curve, concave southeasterly, a distance of 181.29 feet, said curve having a radius of 80.00 feet and a chord which bears S 48° 08' 26" W a distance of 144.91 feet;
thence along the arc of a curve, concave westerly, a distance of 64.51 feet, said curve having a radius of 50.00 feet and a chord which bears S 20° 10' 59" W a distance of 60.13 feet;
thence S 57° 08' 41" W a distance of 465.12 feet;
thence along the arc of a curve, concave northerly, a distance of 94.43 feet, said curve having a radius of 167.00 feet and a chord which bears S 73° 20' 37" W a distance of 93.18 feet;
thence S 89° 32' 33" W a distance of 26.37 feet;
thence N 00° 27' 27" W a distance of 508.79 feet;
thence N 08° 13' 17" E a distance of 80.56 feet;
thence N 08° 13' 17" E a distance of 211.46 feet to the point of beginning.

Containing 23.142 acres.



STATE HIGHWAY 35
WESTERLY R.O.W. STATE HIGHWAY 35
312.85
1225.18
312.85
1225.18



LEGEND
UNIT DESIGNATION
FOUND 1" IRON PIPE
EXISTING 15" UTILITY
EASEMENT
SCALE IN FEET 1" = 100'



UNIT AREAS:
20'X50' UNITS, 1000 SQ. FT.
25'X50' UNITS, 1250 SQ. FT.
SHEET 2 OF 2
DRAFTED BY TY DODGE PROJECT 5010-175
312.85
573.85